



File No.: EXP202301114

RESOLUTION No.: R/00115/2023

Considering the complaint filed before this Agency by A.A.A. (hereinafter, the complainant), against QUALITY-PROVIDER S.A. (hereinafter, the respondent), for not having duly attended to their right of erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised the right of erasure against the respondent with NIF A87407243, and their request, as stated by the complainant, did not receive the legally established response. They provide various documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on May 12, 2022, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days it could present the allegations it deemed appropriate.

This entity has submitted allegations in which, in summary, it states:

“...THE INADEQUACY OF THE INITIATED PROCEDURE AND ON THE INCOMPETENCE OF THE SPANISH AGENCY FOR DATA PROTECTION TO PROCESS THIS MATTER (...) as well as a manifest incompetence of the Spanish Agency for Data Protection to process the present procedure by virtue of what is stipulated by Directive (EU) 2019/1937, of the European Parliament and of the Council, of October 23, 2019, regarding the protection of persons who report infringements of Union Law, which came into force on December 17, 2019. Therefore, through this document, we request that it be declared incompetent and refrain from processing this file...”

Additionally, the respondent states the following:

“Well, this party is unable to provide information related to this file since the complainant does not provide a photocopy of the national identity document for the purpose of being able to identify them, which prevents this party from knowing and reliably identifying which natural or legal person is involved and, therefore, prevents knowing which data is concerned.

Moreover, being in a position of evidentiary impossibility, we must remember that Article 12.2 of Regulation (EU) 2016/679 (GDPR) imposes a liability exemption clause in my favor for not attending to the request of the interested party regarding their rights derived from the GDPR. In this sense, Article 12.2 of the GDPR stipulates that the data controller may not refuse to act at the request of the data subject in order to exercise their rights under Articles 15 to 22, unless they can demonstrate that they are not in a position to identify the data subject.

Furthermore, Article 12.6 of Regulation (EU) 2016/679 states that when the data controller has reasonable doubts regarding the identity of the requesting or complaining natural person, they may

request that they provide the additional information necessary to confirm the identity of the data subject.”

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have designated a...

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Data protection delegate, Article 39 of the GDPR assigns to this individual the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline to resolve the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Furthermore, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the interested party, and to express their reasons if they do not intend to comply with such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

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Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the data subject may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any link to those personal data, or of any copy or replication of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the data controller is subject;

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data controller, or for the fulfillment of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or

e) for the formulation, exercise, or defense of claims."

FIFTH: The aforementioned admission agreement was also transferred to another entity (ESTUDIO

PUERTA DEL ÁNGEL, S.L.) due to a clear material error present in the file, since the right to erasure subject to this file was not exercised against that entity. According to Article 109.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, "Public Administrations may also rectify at any time, ex officio or at the request of interested parties, material, factual, or arithmetic errors existing in their acts. Therefore, it is necessary to correct this material error in this resolution.

SIXTH: In the case analyzed here, the complaining party exercised their right to erasure, and this has not been addressed. The complainant states that they receive calls from a real estate agency, TECNOCASA, and when they ask where their data was obtained, they point directly to the respondent. The complainant then approaches the respondent, who ignores their erasure request.

The respondent contacted the complainant prior to the admission of the request to ask them to identify themselves. According to Article 12.6 of the GDPR, "when the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, they may request the provision of additional information necessary to confirm the identity of the data subject."

However, in this case, the respondent has not justified their inability to identify the complainant through other means. The GDPR does not impose any requirements regarding the methods for determining the identity of the data subject, but the respondent cannot request more personal data than is necessary to allow for this identification.

According to Guidelines 01/2022 of the European Data Protection Board on the rights of data subjects — Right of access, Version 1.0, adopted on January 18, 2022, the use of a copy of an identity document as part of the authentication process creates a risk to the security of personal data and may lead to unauthorized or unlawful acts, and as such, should be considered inappropriate unless it is strictly necessary, appropriate, and compliant with national legislation. In such cases, data controllers must have systems in place that ensure an adequate level of security to mitigate the greater risks to the rights and freedoms of the data subject in receiving such data.

We conclude that the right has not been addressed or has been denied without justification, and therefore the complaint is upheld.

In view of the cited provisions and others of general application,

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The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ESTIMATE the claim made by A.A.A. and to urge QUALITY-PROVIDER S.A. to, within ten working days following the notification of this resolution, send to the claiming party a certification stating that it has addressed the requested right of erasure or that it has denied it with justification, indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: To correct, in accordance with Article 109.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the material error suffered in the admission of this procedure. Thus, this file is processed solely against QUALITY-PROVIDER S.A.

THIRD: TO NOTIFY this resolution to A.A.A. and to QUALITY-PROVIDER S.A.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or

directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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